

**NMRC
JUSTIFICATION AND APPROVAL
OTHER THAN FULL AND OPEN COMPETITION**

1. Identification of the agency and the contracting activity.

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet the Naval Medical Research and Development mission.

2. Nature and/or description of the action.

The need is for preventative maintenance agreement for the Odin Instrument manufactured by Biolog. The Government intends on awarding a Firm Fixed Price contract. The proposed source is Biolog Inc., 21124 Cabot Blvd. Hayward, CA 94545.

3. Description of Supplies or Services:

The Genomics Department of the Biological Defense Research Directorate, Naval Medical Research Command, maintains a state-of-the-art phage therapy research portfolio aimed at ultimately providing medical countermeasures for the fleet. As part of this program, pan- and multiple-drug resistant bacterial isolates are routinely used in the laboratory to isolate and propagate bacteriophages under study. As part of this on-going effort, the BioLog Odin will be utilized for evaluation of individual phage-host pairs to select phages for treatment to overcome antibiotic resistance. This state-of-the-art laboratory instrumentation must be maintained and periodically serviced. Without proper service agreements mission critical scientific research may be compromised due to instrument failure. These are specialized, highly technical, state-of-the-art instruments that must receive service and preventative maintenance by certified, authorized technicians.

Funds in the amount of [REDACTED] will be used to purchase an Odin service contract – 12 month extended warranty plan and preventative maintenance agreement.

4. Identification of the statutory exceptions permitting other than full and open competition.

The statutory exception permitting other than full and open competition for this acquisition is 10 U.S.C. 2304(c)(1) and FAR 6.302-1 sole source (including brand name) acquisitions.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Biolog, Inc. is the OEM of this laboratory instrument and thus is the only source that can provide authorized service technicians.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

There are no other manufacturers of the required products. Market research was performed, the results of which are in paragraph 8. This requirement will be posted to NECO and/or SAM.gov in accordance with FAR 5.202.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made.

8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.

Market research was conducted by technical experts in the Jan/Feb 2025 timeframe. The results of the market research are documented in a Market Research Memorandum.

9. Other facts supporting the use of other than full and open competition.

As above, Biolog is the manufacturer of the specific instrument and therefore, only service provided by Biolog is acceptable. Currently this piece of equipment is under a 1-year initial warranty which expires on end of April 2025.

10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.

To date, no other sources have written to express an interest.

11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Future requirements will be synopsized in accordance with FAR 5.203.

For the reasons set forth in Paragraph 5, NMRC has no plans at this time to compete future contacts for the types of services covered by this document. If another potential source emerges, NMRC will assess whether competition for future requirements is feasible.

12. Point of Contact.

The points of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification is NMRC Contracting at email: usn.detrick.nmrc.mbx.mmd-contracts@health.mil.

TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED BY NAVSUP 4200.83 series

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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Kimberly A. Bishop-Lilly, PhD
Department Head
Genomics/BDRD/NMRC

Date

Phone

Requirements Cognizance

Name

Date

Phone

Title

Department/Command

CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge.

CARTER.SHAMA

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2/28/2025

(301) 319-7182

Contracting Officer

Date

Phone